

Agent Selection & Commission Negotiation Checklist — Tasmania

Choosing the right agent, and understanding what you're actually agreeing to.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Shortlisting Agents

- ☐ [] **Interview at least 3 agents** and compare their recent comparable sales in your specific suburb or region.
- ☐ [] **Ask for a genuine appraisal, not just the highest number** — cross-check against real recent comparable sales.
- ☐ [] **Ask how they'll market the property** and get this in writing.
- ☐ [] **Check their recent track record for your specific property type.**
- ☐ [] **Ask directly about any referral relationships** with conveyancers, stylists, or other service providers, and whether they receive a fee for those recommendations.

Section 2 — Understanding the Agency Agreement

- ☐ [] **Understand this is a legally binding contract governed by the Property Agents and Land Transactions Act 2016 (Tas)** — read every clause, not just the commission rate.
- ☐ [] **Confirm the commission rate is negotiable** — it isn't fixed or regulated at a set percentage.
- ☐ [] **Clarify exclusive vs. open listing terms** and how long any exclusive period runs.
- ☐ [] **Check marketing cost responsibility** — confirm upfront whether costs are included in commission or charged separately, in writing.

Section 3 — Remember: No Cooling-Off Period Applies to Buyers of Your Property Either

- ☐ [] **Understand your buyer will be immediately bound once they sign** — Tasmania has no cooling-off period, similar to WA. This affects negotiation dynamics, since buyers (and their conveyancers) tend to be especially diligent before signing.
- ☐ [] **Discuss with your agent how this affects your marketing and negotiation strategy** — buyers may take longer to commit given the binding nature of signing.

Section 4 — Choosing Your Method of Sale

- ☐ [] **Compare auction vs. private treaty for your specific property and market conditions.**
- ☐ [] **Understand neither method offers a cooling-off period for the buyer in Tasmania.**

Section 5 — Before You Sign

- ☐ [] **Have a solicitor review the agency agreement** if you're at all uncertain.
- ☐ [] **Clarify the termination process** — what happens if you want to change agents partway through the listing period.
- ☐ [] **Confirm who's preparing your contract of sale** and any required disclosure documents, and organise this in parallel with appointing your agent.
- ☐ [] **Ask for references from recent vendors**, not just buyer testimonials.

Quick Reference — Key TAS Agent Agreements

ITEM	DETAIL
Commission rates	Not fixed/regulated — negotiable
Governing legislation	Property Agents and Land Transactions Act 2016 (Tas)
Cooling-off period	None — for either buyer, applying to your sale too
Contract review timing	Must happen before signature, given no cooling-off backstop

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